

Jabir Hussain v. State of U.P. and 4 Others

High Court of Judicature at Allahabad · Division Bench · 26 May 2022 · WRIT - C No. - 9852 of 2022 · **Disposed with liberty to object under Para 6.5; recovery stayed**

HEADNOTE

Writ challenging a Tehsildar's recovery citation for Rs 8,86,081 as electricity charges disposed without any opinion on merits. Petitioner given liberty to submit an objection under Para 6.5 of the U.P. Electricity Supply Code, 2005 before respondent No. 3 within four weeks, to be decided within the next four weeks after hearing. Coercive action on the demand stayed for eight weeks or until disposal of the objection, whichever is earlier.

FACTUAL SUMMARY

Jabir Hussain challenged a recovery citation dated 19 February 2022 issued by the Tehsildar, Tehsil Amroha, directing him to pay Rs 8,86,081 as electricity charges. He sought quashing of the citation and a restraint on the respondents from insisting on payment or taking coercive steps. Counsel for the Power Distribution Corporation (respondent Nos. 2 to 4) stated on instructions that he could file an objection against the demand, to be decided in accordance with law within a time-bound period.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::6.5

objection to electricity recovery demand

HOLDING

Without expressing any opinion on the merits, the writ challenging the recovery citation dated 19.02.2022 for Rs 8,86,081 is disposed with liberty to the petitioner to submit an objection under Para 6.5 of the U.P. Electricity Supply Code, 2005 before respondent No. 3 within four weeks, along with a certified copy of the order. If filed in time, respondent No. 3 shall decide the objection in accordance with law within the next four weeks after affording a reasonable opportunity of hearing. No coercive action shall be taken on the demand for eight weeks or until disposal of the objection, whichever is earlier. ¶ 1

PRINCIPLE TAGS

clause-6.5-alternate-remedy-to-writ Writ seeking quashing of the recovery citation and a stay of coercive recovery was disposed without a merits finding, leaving the petitioner to a Para 6.5 objection before respondent No. 3. ¶ 1

clause-6.5-statutory-remedy-disputed-bill The dispute over electricity charges of Rs 8,86,081 under the citation dated 19.02.2022 was left to be decided on a Para 6.5 objection, within four weeks of a timely filing and after hearing. ¶ 1

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — WHETHER THE RECOVERY CITATION DATED 19.02.2022 FOR RS 8,86,081 AS ELECTRICITY CHARGES IS LEGAL

The Court expressed no opinion on merits. Respondent No. 3 is to decide the Para 6.5 objection in accordance with law.

¶ 1